

2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777.

Having considered the moving papers and any further pleadings submitted, the Court makes the following findings as to the discovery requests at issue:

1. Defendant was duly served with the subject RFAs.
2. No timely response was made to the RFAs by Defendant.
3. No opposition or other responsive pleadings by Defendant have been filed with the Court.

Sanctions

Plaintiff does not seek imposition of sanctions.

Disposition

The Court further finds and orders as follows:

1. The Motion to Deem Admissions is GRANTED.
2. The truth of the facts recited in RFA Nos. 1 through 6 and RFA Nos. 8 through 11 are DEEMED ADMITTED by Defendant.
3. The genuineness of the document attached as Exhibit A to the RFAs, pursuant to RFA No. 7, is DEEMED ADMITTED by Defendant.
4. A proposed form of order was lodged with the Court which the Court shall execute and enter.

7. 9:00 AM CASE NUMBER: L24-09762
CASE NAME: WELLS FARGO BANK, N.A. VS. MOHAMMAD KHESRAWI
***HEARING ON MOTION IN RE: MOTION FOR JUDGMENT ON PLEADINGS FILE BY PLN ON**
09/02/2025
FILED BY: WELLS FARGO BANK, N.A.
TENTATIVE RULING:

Plaintiff Wells Fargo Bank, N.A. ("Plaintiff") filed a Motion for Judgment on the Pleadings on September 2, 2025 (the "Motion for Judgment on the Pleadings"). The Motion for Judgment on the Pleadings was set for hearing on November 25, 2025.

Background

The Motion for Judgment on the Pleadings is based on the contention that the operative complaint states facts sufficient to constitute a cause of action and the answer does not state facts sufficient to constitute a defense. Plaintiff contends that defendant Mohammad Khesrawi (the "Defendant") admits all statements in the complaint are true and that Defendant owes the alleged debt.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) (“Rutter Civ. Pro.”) § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party’s admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

Plaintiff’s Complaint alleges causes of action for Breach of Contract based on the allegation that Defendant became indebted in the amount of \$9,331.56 on a credit card account. See Complaint filed November 8, 2024, p. 2, ¶¶8 and 10 and Attachments (1st and 2nd Causes of Action).

Defendant’s Answer was filed January 28, 2025. The Answer admits the allegations of the Complaint but also states that Defendant denies the allegations of the Complaint regarding the “specific numbers” and amounts claimed, as well as stating a purported affirmative defense of “financial difficulty.” See Answer filed January 28, 2025.

Later, Plaintiff filed a motion to deem the truth of matters admitted in a set of Request for Admissions (the “RFAs”) served on Defendant which was granted by the Court. See Order entered August 20, 2025 (the “Deemed Admitted Order”). The Court takes judicial notice of the Deemed Admitted Order and the underlying court filings in connection with the Deemed Admitted Order.

Based upon the Deemed Admitted Order, it is evident that Defendant has been deemed to admit to the fact of the subject debt and the amount owing, \$9,331.56. See Deemed Admitted Order; see also RFAs attached to Request for Judicial Notice filed September 2, 2024 (the “RJN”), as part of Exhibit 2 including the Declaration of David Bartley filed December 19, 2024, Exhibit 1.

Those admissions are binding upon Defendant for purposes of a motion for judgment on the pleadings. *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 746 (“Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission.”).

While the Defendant pled denials and defenses by way of the Answer, Defendant failed to raise those issues timely in response to the requests for admissions and the Deemed Admitted Order has been made by the Court and has not been set aside. The RFAs include an admission that “[y]ou do not have any defenses to Plaintiff’s Complaint.” See RFAs, No. 9. Nor has Defendant opposed this Motion for Judgment on the Pleadings.

Having considered the moving papers and any further pleadings submitted, the Court makes the following findings:

1. Plaintiff’s Complaint, on its face and considering the Deemed Admitted Order, states facts sufficient to constitute causes of action against the Defendant for

Breach of Contract (1st Cause of Action and 2nd Cause of Action).

2. The Court further finds that the pleadings, in light of the Deemed Admitted Order, do not state facts sufficient to constitute a defense to the Complaint, as to Plaintiff's 1st Cause of Action and 2nd Cause of Action.
3. Defendant became indebted in the amount of \$9,331.56 on the subject credit card account, which amount is due and owing to Plaintiff.

Costs

The moving papers seek an award of recoverable costs in the sum of \$285.00. However, it does not appear that any Memorandum of Costs or other supporting declaration(s) regarding costs were filed as part of the moving papers. Any recoverable costs may be sought by a timely filed Memorandum of Costs or otherwise in accordance with applicable law.

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. A proposed form of order was lodged with the Court which the Court shall execute and enter.

8. 9:00 AM CASE NUMBER: L24-11084

CASE NAME: WELLS FARGO BANK, N.A. VS. ZENAIDA SMITH

***HEARING ON MOTION FOR DISCOVERY MOTION TO DEEM REQUESTS FOR ADMISSIONS AND NONAPPEARANCE FILED BY PLN ON 09/15/2025**

FILED BY: WELLS FARGO BANK, N.A.

TENTATIVE RULING:

Plaintiff Wells Fargo Bank, N.A. ("Plaintiff") filed a Motion to Deem Requests for Admissions Admitted on September 15, 2025 (the "Motion to Deem Admissions"). The Motion to Deem Admissions was set for hearing on November 25, 2025. The motion is unopposed.

Background

Plaintiff served Defendant Zenaida M Smith ("Defendant") with a Requests for Admission (Set One). See Declaration of Douglas Agne filed September 15, 2025 ("Supporting Declaration"), ¶1 and **Exhibit A** thereto (the "RFAs"). The RFAs were served on June 3, 2025 by email. *Id.* at ¶1 and **Exhibit A** [attached Proof of Service dated June 3, 2025 (the "Declaration of Service")].

With a five calendar day extension for service of the RFAs by mail, the responses were due to be served on or before July 8, 2025 (30 days from and after June 3, 2025 was July 3, 2025 and two court calendar days thereafter fell on July 8, 2025). No responses were received by